

24STCV29484 24STCV29484

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV29484 Hearing Date: September 23, 2026 Dept: 617

Dept.

617

Date:

9-23-26

Case

#: 24STCV29484

Trial

Date: 2-1-27

SANCTIONS

MOVING

PARTY: Plaintiffs, William Stan Spry and Heidi Spry

RESPONDING

PARTY: Defendant, City of Los Angeles acting by and through the Los Angeles

Department of Water and Power

RELIEF

REQUESTED

Motion

for Terminating Sanctions, or Alternatively, Issue and Evidentiary Sanctions

SUMMARY

OF ACTION

Plaintiffs

William Stan Spry and Heidi Spry sued Defendant Los Angeles Department of Water and Power after improvements to the road and drainage leading to the Hollywood Reservoir allegedly caused rainwater to be directed, redirected, and to flood toward and into Plaintiffs' property. Plaintiffs assert claims for inverse condemnation, private nuisance, and negligence.

RULING: Denied.

Plaintiffs

move for terminating sanctions, or alternatively, issue and evidentiary sanctions against Defendant for spoliation of evidence. The alleged spoliation is the destruction of a "watershed study," the deletion of an engineer's photos and files, and the failure to produce emails and an enlarged topographic map. Plaintiffs also assert that defense counsel's deposition misconduct warrants the imposition of sanctions. Plaintiffs further seek monetary sanctions against Defendant and its counsel of record in the amount of \$50,000. Defendant opposes the motion, denying any spoliation. Because Plaintiffs fail to show that Defendant spoliated evidence, their motion is denied.

A

trial court has inherent power to "control the litigation before it." (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1431.) When faced with litigation abuse, a court has discretion to preclude evidence to ensure a fair trial (Peat, Marwick, Mitchell & Co. v. Superior Court (1988) 200 Cal.App.3d 272, 288) and to dismiss an action if no other remedy could ensure a fair trial. (Stephen Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 764.) Such remedies are available when a party intentionally destroys evidence. (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.)

"Spoliation

of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation." (Williams, supra, 167 Cal.App.4th at p. 1223.) "[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's

ability to establish an essential element of his claim or defense.” (Id. at p. 1227.)

Plaintiffs

do not show that Defendant spoliated evidence. The evidence presented does not demonstrate Defendant’s destruction of a watershed study. In support of their spoliation argument, Plaintiffs point to prior counsel, City Attorney Jerry Baik’s, representation that a “watershed analysis was done,” supplemental responses denying that any such calculations or studies were conducted, and the continued non-production of the study. [Kar Decl. ¶ 5, Exs. 6-7.] However, the contradictory responses are explained by Baik’s apparent confusion on what a watershed analysis was. [Abbott Decl. ¶¶ 9-11.] Baik testified that prior to this case he did not know what a watershed analysis was, was uncertain whether Defendant used that term in their communications, and just produced the documents Defendant provided and that he deemed were responsive to Plaintiffs’ discovery requests. [Second Supp. Kar. Decl. ¶ 41, Ex. 22, pp. 90:22-91:5.] Defendant’s engineer, Jesus Nunez, also testified that no calculations were used. [Kar Decl. ¶ 4, Ex. 2, pp. 419:11-421:5.] Thus, the evidence indicates that the non-production of a watershed analysis was the result of prior counsel’s mistaken representation of its existence rather than spoliation.

The

Court declines to make a spoliation finding as to the unproduced emails and enlarged topographic map and the deletion of Nunez’s site photos and files. Apart from the site photos, Plaintiffs merely rely on the non-production of the requested documents to support their spoliation argument.[1]

As for the site photos themselves, any deletion would have occurred prior to the instant litigation and Defendant’s obligation to preserve them because Nunez retired in June 2023, more than a year before Plaintiffs filed their complaint in November 2024. (Victor Valley Union High Sch. Dist. v. Superior Court (2023) 91 Cal.App.5th 1121, 1138 [duty to preserve evidence arises when a party “was objectively aware the evidence was relevant to reasonably foreseeable future litigation, meaning the future litigation was probable or likely to arise from an event, and not merely when litigation was a remote possibility”].) In the absence of a more developed record, including further elaboration on Plaintiffs’ claim (raised for the first time in their reply) that the photos were public records subject to Defendant’s retention policy, the Court declines to consider whether the presented facts constitute spoliation. (New Albertsons, supra, 168 Cal.App.4th at p. 1431 [“[I]n most cases of purported spoliation the facts should be decided and any appropriate inference

should be made by the trier of fact after a full hearing at trial"].)

Finally,

the Court does not impose the requested evidence or monetary sanctions against Defendant or its counsel for defense counsel's purported discovery misconduct. The charged misconduct consists of counsel's instruction to Nunez not to answer certain questions and the assertion of speaking objections. These actions do not prejudice Plaintiff from having a fair trial and the Court does not have inherent authority to impose monetary sanctions against parties or their counsel. (*Bauguess v. Paine* (1978) 22 Cal.3d 626, 637-38.) Plaintiffs' motion is therefore denied.

Plaintiffs

to give notice.

[1] Nunez

testified that he did not know whether his file and notes were "thrown away" following his retirement. [Kar Decl. ¶ 4, Ex. 2, pp. 338:5-339:10.]